
Journal

1986 PSC 131

Court

SUPREME COURT

Date

1983-07-07

Appeal No.

CIVIL APPEAL NO. 744 OF 1984

Judge

MUHAMMAD HALEEM, ACJ., MUHAMMAD AFXAL ZULLAH AND DR. NASIM HASAN SHAH

Parties

IHSAN UR REHMAN VERSUS (MST.) NAJMA PARVEEN

Lawyers

FOR THE APPELLANT A. W. BUTT ADVOCATE SUPREME COURT, SH. SALAH-UD-DIN, AOR (ABSENT).FOR THE RESPONDENT: MUSFETAQ AHMAD, ADVOCATE SUPREME COURT,S. WAJID HUSSAIN, AOR. (ABSENT).

Statutes

CONSTITUTION OF PAKISTAN 1973) - ARTICLE 185(3) GUARDIAN OF WARDS ACT (VI OF 1890) - S. 48 READ WITH CIVIL PROCEDURE CODE (VI OF 1908) - S. 113 AND 141 AND FAMILY COURTS ACT (XXXV OF 1964) - SS. 14, 17, 25, 2,3, 4,4-A 3 A SCHEDULE
INTERPRETATION OF STATUTES

Judgment

Mohammad Afzsl Znilafe, J.-This appeal through leave of the Court is directed against judgment* dated 10-10-1983 of the Lahore High Court whereby in a guardianship/custody matter judgment of a Family Court earlier upheld by the Appellate District Court was modified on a civil revision filed by the respondent.

2. The appellant's (father's) application for custody of the minor children of the parties herein was allowed by a learned Civil Judge functioning as Guardian (Family) Judge on various findings of fact with regard to the welfare of the minors rendered against the respondent (mother). Her appeal before the District Court which was heard by a learned Additional District Judge was dismissed on affirmation of the said findings of fact. The respondent then filed an application for revision under section 48 of the Guardians and Wards Act (No. VIII) of 1890 read with Section 115 of the Civil Procedure Code before the High Court. Notwithstanding the preliminary objection with regard to its competency the same was partly allowed on 16-10-1983 by a learned Single Judge. The preliminary objection was over-ruled by making reference to another Single Bench judgment of the same High Court in *Mrs. Parveen v. Kh.*

Muhammad Ashar PLD 1975 Lah. 334. Although the findings of fact rendered against the respondent were considerably modified, the learned Judge declined to hand over the custody to her on the main ground that the minors had expressed the desire to live with the appellant. She was, however, permitted temporary custody of the children during the vacation period when they would be free from the studies. It is against this last mentioned order/direction that the appellant sought leave to appeal. It was granted to examine, inter alia, the contention 'that the judgment of the High Court, on which the learned Judge relied for holding that the revision was competent was *Parveen v. Muhammad Ashar* PLD 1975 Lah.

334 had been disapproved by this Court in *Sakhawat Ali* and another *Mst. Shui Khelay* PLD 1981 S.C. 454."

3. Learned counsel for the appellant has relied on the afore-noted judgment of this Court in *Sakhawat Ali*'s case and has also cited some more cases to support the contention that no appeal or revision in guardianship matters, was competent before the High Court under the Guardians and Wards Act, 1890, after the enactment of the West Pakistan Family Courts Act (No. XXXV) of 1964. The cases cited are

"*Ghulam Hussain v. Mst. Farzang (minor)* 1981 SCMR 953 ; *Sakhawat Ali v. Mst. Shui Khelay* PLD 1981 S. C 454 ; *Abdul Ghafoor Gill v.*

Mst. Mussarat Khan PLD 1984 Lah. 332 ; *Fatal Muhammad v. Ali Ahmad Awan* 1982 CLC Lab. 2354 ; *Mst. Mussarat Jehan v. Mustafa Ali Beg* 1982 CLC Kar. 205 ; *Syed Shamim Ahmad v. Mst. Riaz Fatima* PLD 1975 Kar. 448 ; *Muhammad Ismail v. Mst. Zubeida Khatoon* PLD 1973 Kar. 503 ; *Mst. Zaibun Nisa v. Muhammad Muzammil* PLD 1972 Kar. 410 ; *Mst. Farida Parwin v. Qadeeruddin Ahmed Siddiqi* PLD 1971 Kar. 118 ; *Mst. Tahseen Akhter v. Mahmood ul Hasten* PLD 1971 Lah. 875 ; *Wajahat Ali Hatnie v. Mst. Ghazale* PLD 1970 Lah. 641 *Mst. Maqsoodan Bibi v. Mst. Bakano* PLD 1965 Lah. 183. *

In reply learned counsel for the respondent has relied on :

Muhammad Deen Malik v. Addl Distt Judge 1982 SCMR 1223 ; *Adnan Afzal v. Capt Sker Afzal* PLD 1969 S.C. 187 ; *Alaf Din v. Mst.*

Parveen Akhtar PLD 1970 S.C. 75 ; Khizer Hayat Khan Tiwane v. Mst. Zeinab Begum PLD 1967 S. C. 402 ; Manzeor Hussain v. District Judge PLD 1977 Lah. 911 ; Mrs. Parveen v. Kh. Muhammad Ashar PLD 1975 Lah. 334 ; Muhammad Daud v. Abbas Ali PLD 1969 Lah.

699 Muhammad Ismail v. Fazal Ahmad PLD 1969 Lah. 834 ; Alifdin v. Shauket Ali PLD 1969 Petb. 62 ; Jume Khan v. Mst Gul Ferosha PLD 1912 Pesh. 1 ; as also on a leave granting order dated 13th December, 1981 (reported as Muhammad Deen Malik v. Additional District Judge Karachi, 1982 S. C. M. R. 1223, wherein it was observed that on account of an amendment made in section 47 of Guardians and Wards Act of 1890 it might be necessary for this Court to reconsider the view taken in Sakhawat Ali's case. It may be mentioned that according to the office report the appeal arising out of the said case was not decided on merits as the same was withdrawn.

The relevant provisions of law for consideration in this appeal (of the West Pakistan Family Courts Act (No. XXXV) of 1964 ; the Guardians and Wards Act (No. VIII) of 1890 ; and the Code of Civil Procedure)

are reproduced below : -

Family Courts Act

(2) Definitions.-(1) (b) "Family Court" means a Court constituted under this Act;

The powers of 1st Class Magistrate have been conferred on every Judge of the Family Court so that he may act under section 488, Cr.P.C.

and may make orders for maintenance under that section.

(2) Words and expressions used in this Act but not defined, shall have the meanings respectively assigned to them in the Code of Civil Procedure, 1901.

(3) Establishment of Family Court*. -Government shall establish one or more Family Courts in each District or at such other place as it may deem necessary and appoint a Judge for each of such Courts.

(4) Qualification of Judges.-No person shall be appointed as a Judge of a Family Court unless he is or has been a District Judge, an additional District Judge, a Civil Judge or a Qazi appointed under the Dastur-ul- Adalat Diwani, Sindh, or a Qazi appointed under the Dastur-ul- Adalat Diwani, Baluchistan.

(3) Jurisdiction.-Subject to the provisions of the Muslim Family Laws Ordinance, 1961, and the Conciliation Courts Ordinance, 1961, the Family Courts shall have exclusive jurisdiction to entertain, hear and adjudicate upon matters specified in the Schedule.

(14) Appeal.-(1) Notwithstanding anything provided in any other law for the time being in force, an appeal from a decree or a decree passed by a Family Court shall be appealable

(a) to the High Court, where the Family Court is presided over by a District Judge, an Additional District Judge, or a person notified by Government to be of the rank and status of a District Judge or an Additional District Judge, and (b) to the District Court in other cases.

(2) No appeal shall lie from a decree passed by a Family Court

(a) for dissolution of marriage, except in the case of dissolution for reasons specified in clause of item (viii) of section (2) of the

Dissolution of Marriages Act, 1939.

(b) for dower not exceeding rupees one thousand ;

(c) for maintenance of rupees twenty-five or less per month.

(17) Provisions of Evidence and Code of Civil Procedure not to apply.-

(1) Save as otherwise expressly provided by or under this Act, the provisions of the Evidence Act, 1872, and the Code of Civil Procedure, 1908 except sections 10 and 11 shall not apply to proceedings before any Family Court. (2) Sections 8 to 11 of the Oaths Act, 1873, shall apply to all proceedings before the Family Courts.

(25) Family Court deemed to be a District Court for Purposes of Guardianship and Wards Act, 1980

prescribed in that Act. (26) Follow the procedure

"Schedule.-(See Section 5)

**» Guardian, and Wards Act, 1980

(4) Definitions.- (1)

(2)

(3) -

«\$ coiv o?& "proc'. 'du?.' srsajsras a» of the ordinary order, in the case of the Court, the Court

(5) 'the Court' means-

Who appoints

. *° °r, i, r or declaring

W *0M' « "pp!", " " *ppoi>,' <1 « i» P»r. « «.c. of

" HSST' «

CoS?!? SL*; * proceediP* transferred under section 4*A, the referred. the ® to "bom such proceeding has been trans-

S3

Section 7 subordinate to him empowered under sub-

Court to *an/ officVr'.fk*187 at *ny It,ge trac*fer to his own xetioa 7 effacer suboidmate to him empowered under mh.

~ZSJUKS**“« -ki' A« X.U

(4) When any proceed in,, «r. transferred under this section in any case in which a guardian has been appointed °[jif \$

of the District may, by order in writing, declare that the Court or the Judge or officer, to whom they are transferred shall for all or any of the purposes of this Act, be deemed to be the Court which appointed or declared the guardian,

(47) Order appealable.-An appeal shall lie to the High Court from an order made by a Court:-

(a) under section 7, appointing or refusing to appoint or depute guardian ; or under section 9, subsection (3), an application ; or

(e) under section 25, making or refusing to make an order for the return of an award to the custody of his guardian , or (d) under section 26, refusing leave for the removal of a ward from the limits of the jurisdiction of the Court, or imposing conditions with respect thereto ; or

(3) under section 28 or section 29. refusing permission to a guardian to do an act referred to in that section : or under section 32, denying, restricting or extending the powers of a guardian ; or

(g) under section 31, removing guardian , or

(h) under section 40, refusing to discharge a guardian ; or under section 43 regulating the conduct or proceedings of a guardian or settling a matter in difference between joint guardian* or enforcing the order or

(j) under section 44 or section 45, imposing a penalty

“Provided that, where the order from which an appeal is preferred is passed by an officer subordinate to a District Court, the appeal shall lie to the District Court.”

(48) Finality of other orders.-Save as provided by the last foregoing section and by section 622 of the Code of Civil Procedure an order,

made under this Act shall be final, and shall not be liable to be contested by suit or otherwise.

Civil Procedure Code

(2) Definitions.-{1)

(2) -

(3)

(4) “district” means the local limits of the jurisdiction of a principal Civil Court of original jurisdiction (hereinafter called a District Court”, and includes the local limits of the ordinary original civil jurisdiction of a High Court:

(4) Savings.-{1) In the absence of any specific provision to the contrary, nothing in this Code shall

be deemed to limit or otherwise affect any special or local law now in force or any special jurisdiction or power conferred, or any special form of procedure prescribed, by or under any other law for the time being in force.

(113) Revision.-(i) The High Court may call for the record of any case which has been decided by any Court subordinate to such High Court and in which no appeal lies thereto, and if such subordinate Court appears-

(a) to have exercised a jurisdiction not vested in it by law, or

(b) to have failed to exercise a jurisdiction so vested, or

(c) to have failed to exercise its jurisdiction illegally or with material irregularity, the High Court may make such order in the case as it thinks fit.

Provided that, where a person makes an application under this subsection, he shall, in support of such application, furnish copies of the pleadings, documents and order of the subordinate Court and the High Court shall, except for reasons to be recorded, dispose of such application without calling for the record of the subordinate Court.

(2) The District Court may exercise the powers conferred on the High Court by sub-section (1) in respect of any case decided by a Court subordinate to such District Court in which no appeal lies and the amount or value of the subject-matter whereof does not exceed the limits of the appellate jurisdiction of the District Court.

(3) If any application under sub-section (1) in respect of a case within the competence of the District Court has been made either to the High Court or the District Court, no further such application shall be made to either of them.

(4) No proceedings in revision shall be entertained by the High Court against an order made under sub-section (2) by the District Court.

(141) Miscellaneous Proceeding!.-The procedure provided in this Code in regard to suits shall be followed, as far as it can be made applicable, in all proceedings in any Court of civil jurisdiction."

4. The afore-quoted provisions have been commented upon in one or the other context in the cited case law. However two main questions for consideration in this appeal are :-

One.-Whether it is covered by the pronouncements made by the Supreme Court in the case of Sakhawat Ali. And if so,

Two.-Whether the said decision needs to be reconsidered.

5. In Sakhawat Ali's case no doubt the question on merits directly involved was whether an appeal from the judgement of a Guardian Judge under Section 47 (unamended) of the Guardians and Wards Act, before the High Court was competent. The answer rendered was in the negative. The reasoning which then prevailed with the Court is based mainly upon the consideration of the two highly relevant provisions of the Family Courts Act namely Sections 14 and 25. It can be divided into two parts: One, which would apply to the appeals as also revisions under the Guardians and Wards Act and thus would have to be treated as the law declared relating to both the appeals and revisions. While another part of the reasoning relates only to the

appeals. The context in which the general reasons covering both the appeals and the revisions, were recorded was with clear implication of the same being declared as law and applicable accordingly and not as mere obiter*. It will be of advantage to reproduce one of these reasons from page 457 of the report.

(a) 'The section (25) does not, in terms, repeal section 14 nor does it refer to the litigants' right of appeal.'

(h) 'The (contrary) contention assumes that section 25 amounts to an implied repeal of section 14 in all guardianship matters. If that had been the intention of the Legislature, it would have enacted accordingly, because repeals are not to be lightly implied.'

(c) 'Even on the footing that a statute has to be read as a whole, what does section 25 enact. It only prescribes that the procedure of the Guardians and Wards Act shall be followed by the Guardian Judge and not the procedure contained in the said Act (Family Courts Act).

Therefore, we would explain here that the mode of trial prescribed in the said Act contains sweeping departures from the mode of trials in suits under the Civil Procedure Code...

the mode of trial laid down in the said Act is expressly excluded by section 25.'

(d) 'As according to this section (25), the Guardian Judge has to "follow the procedure prescribed" in the Guardians and Wards Act, it would be sufficient to observe that whilst this Act (the Guardians and Wards Act) does not contain elaborate provision*

for the conduct of a trial in guardianship cases, it contains some provisions for regulating such trials, and the effect of the words

quoted is that these provisions have to be followed by Family

Courts, whenever they hear guardianship cases. But the procedure prescribed for hearing a case under the Guardians and Wards Act has nothing to do with the question of forum in which an order under this Act can be challenged by the aggrieved party.'

(e) 'And' this section (23) neither states nor implies that it is intended to govern the rights of parties after the Family Court has become functus officio by deciding the case before it.'

After the afore-quoted elaborate reasons the judgement proceeds at pages 458 to 460 of the Report to deal mainly with the question of appeal; but before that we find a very weighty reason which is in seriatim reproduced below :

'The obligation imposed by section 25 to follow the procedure prescribed in the Guardians and Wards Act is an obligation imposed on the Court, and there is nothing in the text to support the view that it was intended to regulate the rights of the parties after the Family Court* had become functus officio'

6. Not only the afore-mentioned reasons but also the fact that the Lahore High Court's judgement in the case of Mrs. Farveez (PLD 1975 Lahore 334) was not approved as declaring correct law, would further show that the decision by this Court rendered in the case of Sakhat Ali* was intended to cover both the appeals and revisions arising out of guardianship matters, because the real care of the matter arose out of revision filed in the High Court and dealt with the question of its competency which was held by the High Court to be competent. It is also interesting to note

that the Division Bench care of Mcrzoor Hussain decided two years later (PLD 1977 Lahore 911) which had affirmed the view taken in the case of Mrs. Farvttn was not approved by this Court as it was not in accordance with law. On the contrary, two judgements of the erstwhile Sind Baluchistan High Court in the cases of MstZaiLnNJf and, Mozammil (PLD 1972 Karachi 401) and Muhammad Ismail v jif, YT-F Khataon (PLD 1973 Karaehi 503) were approved by the Division Bench.

In the above judgements (Mst. Zaibun Mse), it was clearly held that Section 17 of the Family Courts Act is not applicable.

Under the Civil Procedure Code (except Sections 16 and 17) in so far as the Family Courts were concerned, the litigants could file

an application under Section 115 of the Civil Procedure Code and the revision under the said Section was not maintainable. The case of Mst. Farida Parkin (PLD

1971 Karachi 111) decided by one of us (Muhammad Hahem) as a Judge of the Sind and Baluchistan High Court) with the result that on account of the bar contained in Section 17 of the Family Courts Act, one of the main requirements of Section 115 C P C that it is a suit, was not

met. The result was that the application was dismissed.

In the case of Mst. Farida Parkin (PLD 1971 Karachi 111) decided by one of us (Muhammad Hahem) as a Judge of the Sind and Baluchistan High Court) with the result that on account of the bar contained in Section 17 of the Family Courts Act, one of the main requirements of Section 115 C P C that it is a suit, was not

met. The result was that the application was dismissed. The object of the Family Courts Act was to provide a forum for the settlement of family disputes and for that reason the combined reading of Sections 14 and 25 of the Family Courts Act is not applicable. Therefore a revision is not maintainable in the guardianship matters decided by a Family Court was not.

In yet another case Chulam Hussain v Muhammad (PLD 1971 Karachi 111) decided by one of us (Muhammad Hahem) as a Judge of the Sind and Baluchistan High Court) with the result that on account of the bar contained in Section 17 of the Family Courts Act, one of the main requirements of Section 115 C P C that it is a suit, was not

met. The result was that the application was dismissed. The object of the Family Courts Act was to provide a forum for the settlement of family disputes and for that reason the combined reading of Sections 14 and 25 of the Family Courts Act is not applicable. Therefore a revision is not maintainable in the guardianship matters decided by a Family Court was not.

In yet another case Chulam Hussain v Muhammad (PLD 1971 Karachi 111) decided by one of us (Muhammad Hahem) as a Judge of the Sind and Baluchistan High Court) with the result that on account of the bar contained in Section 17 of the Family Courts Act, one of the main requirements of Section 115 C P C that it is a suit, was not

met. The result was that the application was dismissed. The object of the Family Courts Act was to provide a forum for the settlement of family disputes and for that reason the combined reading of Sections 14 and 25 of the Family Courts Act is not applicable. Therefore a revision is not maintainable in the guardianship matters decided by a Family Court was not.

So the application for revision was dismissed. The learned counsel for the respondent argued that the point noted therein for reconsideration was not examined in its details.

So the application for revision was dismissed. The learned counsel for the respondent argued that the point noted therein for reconsideration was not examined in its details.

It is contended on behalf of the respondent that the addition of the proviso after clause (j) of the Guardians and Ward, Act 1980 was not brought to the notice of this Court at the time of decision of the learned judge. It is further argued that its effect has not been considered. The respondent further argues that the effect of the proviso is not imputed to any enactment. If, therefore, the view that section 5 of the Guardians and Wards Act, has been made dormant by the combined effect of sections 5, 14 and 25 of the West Pakistan Family Courts Act, as held in Sakbavalu v. Birr (PLD 1971 Karachi 111) decided by one of us (Muhammad Hahem) as a Judge of the Sind and Baluchistan High Court) with the result that on account of the bar contained in Section 17 of the Family Courts Act, one of the main requirements of Section 115 C P C that it is a suit, was not

b* h.cld ,h,t ,he r,8bt of appeal would fc« regulated bv sectLn 47 and tba consequence will be that do ipm*! FV" 9B

rd.r passed bj a Family Court Md.r'tcction12 of ?hS OtSrTtoS

»ad Wards Act. The submission of the learned counsel raie a serious question of law, requiring the re-examination of the view

adopted by this Court in Sakhawas AH's case."

8. Tbs context in which leave t* appeal was granted in the case of Muhammad Been Malik is slightly different : whether an appeal from an order of temporary custody under Section 12 of the Guardian* and Wards Act would at all be coinpntent- if section 47 is applied it would not be; but if she matter is dealt with under Section 14 of the Family Courts Act, it might be competent as an appeal against a decision of a Family Court, The main question nevertheless was the same as was considered i_a Sekhawai Aii's case-whether Section 47 of the Gurdians and.

Wards Act would be applicable to the guardianship matters dealt with by a Family Court constituted under the Family Courts Act.

9. Section 47 in its purview enacted that all appeals from orders referred therein passed ussier the Guardians and Wards Act by 'the Court' {as defined ia the Guardians and Wards Act) would lie to the High Court (before the amendment). The decision of 'the Court' dsfined in Section

(5) (a) of the Guardians and Wards Acl as the "District Court') even if it was presided over by a Civil Judge subordinate to a District Court, by Virtue of enabling provision contained in Section 4-A of the Guardian* and Wards Act, was appealable under Section 47 only to the High Court. The amendment .made in 1980 provided that when 'the Court' was presided over by a Civil Judge subordinate to the District Court the appeal shall then lie to the District Court and not t© the High Court. The argument advanced in the case of Muhammad Been Malik was that if an appeal under Section 47 was not competent in a case decided by a Family Judge, then there was ao seed for the legislature to have made the amendment st all. Prima facie the argument is attractive, that is why leave to appeal was granted. But an deeper scrutiny it seems that the amendment wa* made by the legislature under some mis-apprehension. It seems that the Jaw declared by the Lahore High Court in ths case* of Parveen and Manzoor Hussain, (decided ia 1975 sad 1977) was treated to have concluded the controversy and the contrary view taken in the earlier ca»ss decided in 1971; 1972; and 1973 (Karachi), was assumed to have been superseded by the Lahore eases. If so, it was wrong assumption because toe two different views were expressed by separate High Courts and although the view of one had persuasive value for the other, they were not as such binding ©a each other. Be that as it may, the overruled view expressed ia the Lahore cases was, it faaa been noted earlier, made the basis for bringing, by amendment, the proviso ia Section 47; os the assumption, that the appeal (as held ia the Lahore cases) was comps tent under Section 47 of the Guardians and Wards Act and not under Section 14 of the Family Courts Act. This incorrect assumption led to the enactment of the proviso. Although the presumption is that redundancy is aot to be imputed jo an enactment nor ignorance of Saw is to be imputed to the law making agency; but this presumption can differ from csss to ease. And in proper situations t*ae superior Courts have even made corrections where the legislature is demonstrably show® to have made a visible error. Here one visible error is that tbs Karachi view was deemed to have been l subordinated to the Lahore view which on no jurisprudential ba»is can be

' upheld a* correct. The two judgements were not rendered by the same Court as it used to be

the situation when the West Pakistan High Court had different Benches at Karachi and Lahore. Secondly, for a more weighty reason the amendment would not be deemed to have diluted, in any way, the effect of the law declared by this Court in *Sakhawat Ali* case, which was decided on 22nd of March 1981 while the amendment was made on 26th of March 1980. The declaration of law in the case of *Sakhawat Ali* by Supreme Court of Pakistan in pursuance of the mandate of the Constitution will over-ride the amendment made in Section 47 and nullify its effect by virtue of Article 153 of the Constitution.

For yet another reason the proviso added to section 47 would have no effect as even on the argument advanced from the respondent's side it would be rendered inoperative in cases like the present one. It looks to the fact that Section 4-A was added to the Guardians and Wards Act by way of an amendment in the original Act and provided that when the Court is presided over by an officer (Civil Judge) subordinate to the District Court an appeal shall lie to the District Court. The argument advanced from the respondent's side and accepted by the High Court on the basis of the judgment in *Parveens* case proceeds on the assumption that a Family Judge, when dealing with a guardianship matter, is deemed to be a District Court under the Guardians and Wards Act. It loses its original position as a Family Court and thus the appeals from such a Court would lie to the High Court under Section 47 of the Guardians and Wards Act and not to the District Court under Section 14 of the Family Courts Act because an appeal under Section 14 (1)(b) to the District Court would not be maintainable against decision of another District Court.

This latter argument relating to Section 14 was noted and rejected in the case of *Sakhawat Ali*. However, the argument advanced from the respondent's side on the basis of the proviso added to Section 47 will be subjected to similar criticism namely, that if a Family Court which is presided over by a Civil Judge is for all purposes converted into a District Court under Section 25 of the Family Courts Act when hearing a guardianship matter then under the newly added proviso to Section 47 of the Guardians and Wards Act the appeal from such so-called and deemed District Court shall "lie to the District Court". The error and fallacy is obvious and it needed not be commented upon any further. For all these reasons no justification has been made out for re-consideration of the case of *Sakhawat Ali* on the basis of the newly added proviso to Section 47.

10. Learned counsel for the respondent tried to raise other arguments for re-consideration of the decision in *Sakhawat Ali*'s case and has relied, amongst others, on the cases : *Adnan Afzal v. Capt. Shahr Afzal*, PLD 1969 Pesh. 62, to contend that the provision in law, of a forum of trial, is to be deemed to be one of procedure. And that being so, the argument that the word "procedure" used in section 25 of the Family Courts Act would not cover appeals and revisions (accepted in the case of *Sakhawat Ali*, should now be rejected because the provision for a forum of the appeal has also likewise to be treated as one of procedure. This question has thoroughly been dealt with in *Sakhawat Ali*'s case. Although the two cited cases are not mentioned in the judgment but that will not make any difference because it was nowhere held in these two cases that the provision for forum of appeal is necessarily a subject matter of procedure. Rather there are observations indicating otherwise. Similarly, the argument that appeal is in principle a continuation of the trial for the reason* given in *Sakhawat Ali*'s case this contention was also examined, does not require any further comment.

11. As to the argument that revision when compared to an appeal is of a lighter nature and should be distinguished as one of procedure, as contemplated under section 48 of Guardians & Wards Act and/or under section 141 of the Civil Procedure Code, is also without any force.

There is elaborate discussion in *Sakhawat Ali*'s case regarding interpretation of the relevant provision* of the Family Courts Act. It was held and rightly so that section 25 permitted the

Family Court when deemed to be District Court under the Guardians and Wards Act to adopt the "procedure" prescribed in the Guardians and Wards Act as a mode of trial, during the trial and thereafter in so far as the said Act is concerned, the Family Court becomes functus officio. It does not need any further repetition or support of reason-rectiesi 25 is very clear on this question,

It clearly excludes the application of the Guardian and Wards Act to the stage when the original trial ends except when the original trial Court, according to the various provisions of the Guardians and Wards Act, implements its own orders or regulates the conduct or proceedings of the guardian and similar; other matters. The use of the word "matter" in section 24 of the Family Courts Act is in this context (in addition to the trial and "in the context of appeal" and revisions. This also explains the omission of the expression, "mode of trial" or for that matter "trial" from section 25 of the Family Courts Act.

12. For another reason also section 25 of the Family Courts Act cannot be interpreted so as to extend it to appeals or revisions because it obviously applies to a Family Court which according to this provision shall firstly be deemed to be a District Court and the Court shall follow the procedure when conducting a trial, as prescribed in the Guardians and Wards Act and not in the Family Courts Act. The section obviously does not apply to the higher forums particularly the High Court when it is dealing with an appeal or revision because it is only for a Family Court that a deviation has been made to a limited procedural extent from what is "provided in the Family Courts Act and nothing is said in section 25 about any other Court including the High Court. A revisional forum under section 48 is thus excluded from the ambit of section 25,

13. Yet another argument advanced by the learned counsel for the respondent, namely, that section 141 C.P.C. could operate independently so as to make scope for the High Courts exercising revisional powers in cases decided by a Family Court even under the Family Courts Act notwithstanding section 17 of that Act which generally has its application, for no force. Whether in the present context a revisional forum will be competent to procedure or not is not very important because for another very strong reason the argument has no force. Section 141 C.P.C. is attracted only when all the conditions are satisfied and so provision is made to the contrary in the legislation which otherwise covers the case.

Here in the present case Family Court will have to be treated as out of the scope of the C.P.C. not only because of section 17 which excludes the application of C.P.C. but also because the entire provisions of the Family Courts Act make a departure from the major stages of procedure prescribed in the Civil Procedure Code. The intention obviously as held in the case of *Wajahat Ali Husrain v. (Mst.) Ghosia*, PLD 1970 Lahore.

641, was to provide speedy disposal of matters mentioned in the Schedule to the Family Courts Act. Therefore the application of C.P.C. was excluded except in so far as it has been specifically made applicable. That intention is clear, revisional power cannot be assumed by the High Court on the basis of the general provision namely, section 141 of the C.P.C.

14. there is yet another weighty reason which prevailed in the case of *Tarudd Parwin*. It cannot be ignored. - To attract revisional jurisdiction of the High Court by virtue of section 113 read with section 141 C.P.C. it should be essential that the conditions laid down in section 115 of the C.P.C. are also satisfied. As soon as this exercise is commenced to see whether the various conditions (like those of "case decided" "subordinate Court" etc. prescribed in section 113) are satisfied or not, reference and reliance would have to be made to C.P.C. For example, for discovering the definition of "subordinate Court", section 2 C.P.C. will have to be referred to. But section 17 of the Family Courts Act clearly bars any reference to the C.P.C. when dealing with the

proceedings before or the legal position of a Family Court.

15. -For all these reasons it has rightly been held in *Sakhawat Ali's case* that the High Court has no jurisdiction whether in cases

*1 deal# under the Family Courts Act or those dealt under the Guardians and Wards Act by virtue of section 25 of the Family Courts Act.

section 14 providing for the appeals continues and will continue to cover the LSLD of remedy, of course, apart from the Constitutional remedy.

16. * In the light of the foregoing discussion this appeal is allowed and the impugned judgment of the High Court is set aside as without jurisdiction because the revision filed in the High Court was not competent.

There shall be no order as to costs.

17. Before parting with this judgment it needs to be observed that as held by this Court in the case of *Khizar Hayat Khan Tiwana v. (Mst.) Zeinab Begum*, PLD 1967 SC 402, the Family Court when acting as a guardian Judge exercises parental jurisdiction and the technicalities in so far as it is possible should not be allowed to frustrate substantial justice. A second application wherever it is permissible and is in accordance with the conditions for filing such an application before the Family Court (if there is substantial change of circumstances and situation) is not barred under the relevant law. And the Family Court when sitting as a Guardian Judge is empowered also (when it is necessary) to regulate the conduct of proceedings of any Guardian appointed or declared by it. This principle will apply to the regulation of the custody of the minors/wards in cases like the present one. The relief sought by the respondent regarding visit to the respondent or question of meetings between the minors and the parent can be regulated through an application to the Family Court.

easylaw Case No.
1149733

Download Case